

CHAPTER 45.

An Act to amend the Law relating to the Education of Defective and Epileptic Children in England and Wales.
[10th August 1914.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) It shall be the duty of the local education authority for the purposes of the Elementary Education (Defective and Epileptic Children) Act, 1899 (herein called the principal Act) to make suitable provision, either alone or in conjunction with other local education authorities, for the education of children belonging to their area whose age exceeds seven years and who are ascertained to be mentally defective within the meaning of the principal Act, and accordingly after the words "they may" in subsection (1) of section two of the principal Act there shall be inserted the words "and in the case of mentally defective children whose age exceeds seven years shall" : Duty to provide for education of mentally defective children. 62 & 63 Vict. c. 32

Provided that the duty of a local education authority under this Act shall not include—

- (i) A duty to make provision for boarding and lodging a mentally defective child unless the Board of Education are satisfied, after considering the report of a duly qualified medical practitioner approved by the Board under section one of the principal Act, and after consultation with the local education authority, that suitable provision for the child's education cannot be made in any other way, and unless the grants payable out of moneys provided by Parliament in respect of a mentally defective child, so boarded and lodged, amount to not less than one-half of the cost of conveying such child to and from any school so provided, and of educating, boarding, and lodging and medically attending and treating that child (including, in the case of a school provided by a local education authority, expenditure out of income by the authority by way of interest on or repayment of capital raised, or by way of rent or other similar payment, for the purposes of the provision of the school) ; or
- (ii) A duty to establish a certified school for boarding and lodging mentally defective children, unless the Board of Education are satisfied, after considering the reports of such medical practitioners, and after such consultation as aforesaid, that there are not less than forty-five such children belonging to the area for whose education suitable provision cannot be made in any other way.

3 Edw. VII.
c. 13.

(2) Subsection (6) of section two of the principal Act and the Elementary Education Amendment Act, 1903, are hereby repealed.

(3) In case of doubt as to whether a child is or is not mentally defective within the meaning of the principal Act, the matter shall be determined by the Board of Education.

Discontinu-
ance of cer-
tified school.

2. In the event of a local education authority proving to the satisfaction of the Board of Education that the average attendance of mentally defective children at a certified class or school provided by such authority has, during the previous three years, been less than fifteen, it shall be lawful for such authority to discontinue the maintenance thereof, and thereupon the authority shall make such alternative provision for the mentally defective children belonging to their area as the Board of Education, after consultation with such authority, may approve.

Consultation
of parents and
co-operation
with other
authorities
and persons.

3.—(1) A local education authority, before deciding what provision shall be made for the education of a mentally defective child, shall endeavour to ascertain the wishes of the parents of the child and shall, so far as possible, give effect to their wishes.

(2) A local education authority, in the exercise and performance of their powers and duties under the principal Act and this Act, shall have regard to the existing supply of certified schools and classes, and shall, so far as possible, co-operate with other authorities or persons providing or having power to provide certified schools and classes.

Delegation of
authority to
the council of
a county.

4. The council of a non-county borough or urban district having powers and duties under the principal Act and this Act may, at any time after the passing of this Act, by agreement with the council of the county in which the borough or urban district is situate, and with the approval of the Board of Education, relinquish in favour of that council any of those powers or duties, and in that case the powers or duties of the authority so relinquished shall cease, and the area of the authority shall, as respects those powers or duties, be part of the area of the county council.

Enforcement
of obligations
of parents of
mentally
defective and
epileptic
children.

5.—(1) If a local education authority are satisfied, after consultation with the parent of a mentally defective or epileptic child over seven years of age, that the parent is not making suitable provision for the child's education, they may require the parent of the child to send the child to a certified class or school suitable for the child, and, if he fails without reasonable excuse to do so, may by complaint apply to a court of summary jurisdiction for an order requiring the child to be sent to a certified class or school suitable for the child and willing to receive him, being either such as the parent may select, or, if he does not select a suitable class or school, then such class or school as the court thinks expedient, and such an order shall be

a sufficient authority for the conveyance of the child to the class or school named in the order:

Provided that no order shall be made requiring the child to be sent to a certified class or school which is not within reach of the child's residence or to a boarding school without the consent in writing of the parent, unless it is proved to the satisfaction of the court that such consent is unreasonably withheld, or that the parent cannot be found, but consent shall not be deemed to be unreasonably withheld if withheld with the bonâ fide intention of benefiting the child:

Provided further that if the court shall refuse to make an order the court, unless for good cause it shall otherwise order, shall award costs to the parent, and the costs so awarded shall, unless some reason to the contrary appears, include such sum as compensation for the expense, trouble, and loss of time incurred in or incidental to his attendance at the court as to the court may seem just and reasonable.

(2) The provisions of this section shall be in substitution for, and not in addition to, the power of a court of summary jurisdiction, on an attendance order not being complied with, to order the child to be sent to an industrial school under section twelve of the Elementary Education Act, 1876, as applied by the principal Act. 39 & 40 Vict.
c. 79.

(3) Nothing in this section shall be construed as affecting the power of a parent to withdraw a child from school on proof to the satisfaction of the local education authority that he will make suitable provision for the child's education in some other way.

6. Section one of the principal Act shall be construed and have effect as if the following words were added at the end of subsection (3) of that section:— Certification of
children

"Such duly qualified medical practitioner shall, if so directed by the local education authority, or, if he is so requested by the parent of the child, before giving a certificate under this section, consult the head teacher of the school, if any, which the child has been attending, or such other person as the local education authority may appoint for the purpose, and a copy of any report made by the head teacher or such other person shall be forwarded to the local education authority."

7. When a child is discharged from a special school or class on the ground that he is no longer mentally defective the local education authority shall return to the parent of the child any certificate certifying that the child was mentally defective, and such certificate shall not be received in evidence in any legal proceedings without the consent of the child or its parent. Return of
certificate.

8.—(1) For the purposes of the principal Act and this Act a child shall be deemed to belong to the area in which the Determination
of residence.

residence or permanent home of the child is for the time being situate :

Provided that, in the case of a child in a school or boarded out in pursuance of the principal Act or this Act, the local education authority who are making provision for his education shall continue liable to make such provision pending the determination of any question which may be referred to the Board of Education under this section.

(2) If any question arises as to the area to which a child is to be deemed to belong, that question shall be determined by the Board of Education, and the Board on determining the question may direct such financial adjustments between the local education authorities concerned as they may consider just.

Short title and commencement.

9.—(1) This Act may be cited as the Elementary Education (Defective and Epileptic Children) Act, 1914, and shall be construed with the principal Act, and that Act and this Act may be cited together as the Elementary Education (Defective and Epileptic Children) Acts, 1899 to 1914; and the Education Acts, 1870 to 1911, the Education (Choice of Employment) Act, 1910, and this Act may be cited together as the Education Acts, 1870 to 1914.

(2) This Act shall come into operation on the first day of January nineteen hundred and fifteen.

CHAPTER 46.

An Act to ensure the Purity of Milk Supplies and to regulate Dairies in Scotland, and for other purposes connected therewith. [10th August 1914.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Extent and commencement of Act.

1. This Act shall extend to Scotland only, and shall come into operation on the first day of January one thousand nine hundred and fifteen or such later date, not being later than the first day of October, one thousand nine hundred and fifteen, as the Local Government Board for Scotland may appoint.

Definition.

60 & 61 Vict.
c. 38.

2. Expressions used in this Act shall (unless such meaning is inconsistent with the context) have the meanings assigned to them in the Public Health (Scotland) Act, 1897, subject to the following additions and modifications: the word "dairy" shall include any creamery, farm, farmhouse, cowshed, byre, milk store, milk shop, or other premises from which milk is sold or supplied for sale or in which it is kept for purposes of sale, or which are used for the making of butter, cheese, or other milk products for human consumption for purposes of sale, but shall